

DATE OF COUNCIL MEETING: June 10, 2013

SPONSORs: (ORDINANCE OR RESOLUTION) Sean Allen

(1% Sales Tax Funding/Years)	N/A
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(Other Funding _____) (Grant _____)

CONTACT PERSON: Donna Ferguson PHONE: 638-4342 DEPT: Planning/Development

OTHER CITY DEPARTMENT AFFECTED: Engineering Tech Branch

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney () Dept. Head (X)

General Comments: The City of Cheyenne Planning Commission recommended approval of the above described zone change by a unanimous vote at its meeting on June 3, 2013. See the attached Staff Report for more information.

Submitted by: Brandon Cammarata Title: Planning & Dev Director Date: June 4, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech Branch

City Clerk's Office

Development Office

STAFF REPORT

“Hutchins Rezone”
Summation

Zone District Map Amendment Process

CASE NUMBER: UDC-13-00163
FILE CODE: CAMP-Z
PREPARED BY: Donna Ferguson
MEETING June 3, 2013 – Planning Commission
DATES: June 10, 2013 – City Council

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from Community Business (CB) to Heavy Industrial (HI) pursuant to the review criteria outlined in Article 2, Section 2.2.1.d of the Cheyenne Unified Development Code (UDC).

STAFF REPORT UPDATE (06/04/13): At its regular meeting Monday, June 3, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Zone Change by a unanimous vote of 3 to 0. The recommendation was made pursuant to the criteria outlined in Article 2, Section 2.2.1.d of the UDC.

STAFF REPORT
Zone District Map Amendment Process

“Hutchins Rezone”

CASE NUMBER: UDC-13-00163 **File Code:** CAMP-Z
PREPARED BY: Donna Ferguson
SUBMITTAL DATE: April 26, 2013
PRE-APP MEETING: None
MEETING DATES: June 3, 2013 – Planning Commission
June 10, 2013 – City Council
OWNER: Fishor LLC & Pickle LLC
109 E. 17th Street
Cheyenne, WY 82001
421-9430
AGENT: Phil Pucel
H2X, LLC
731 Custer Street
Cheyenne, WY 82009
634-6684
WORK DESCRIPTION: Zone Change from CB, Community Business, to HI, Heavy Industrial
DOCUMENTS: Application, Zone Change Map
OTHER: Adjacent property owners were notified by mail
LEGAL: Lots 3, Block 2, Campstool Addition, 2nd Filing, Cheyenne, Wyoming
LOCATION: North of and adjacent to Hutchins Drive and west of Campstool Road
PROPERTY SIZE: 2.08 acres
CURRENT ZONING: Community Business (CB)
PROPOSED ZONING: Heavy Industrial (HI)
LAND USE: Vacant
PROPOSED LAND USE: Impound and truck washing facility

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Commercial machine sales	HI	City
South	Truck stop	HI	City
East	Vacant	CB	City
West	Commercial machine sales, Vacant	HI, CB, LI	City

SUMMARY:

The applicant is requesting a zone change from Community Business (CB) to Heavy Industrial (HI) for a vacant 2.15 acre site located at the eastern edge of the City, north of Interstate 80, at the Campstool Road and Interstate 80 interchange. Currently the parcel is located within a Community Business zone district (CB) but is surrounded by a Heavy Industrial zone district (HI) to the north, west and southeast and a Light Industrial zone district (LI) to the southwest. Other CB zone districts are sprinkled throughout the near vicinity. The subject property and surrounding vicinity are already platted and established with streets, lots and blocks and are largely served by necessary infrastructure such as utilities, sewer and storm drainage. Other land uses in the area include a Caterpillar Dealership, Old Dominion Freight Company, a John Deere equipment supply, a Pilot Travel Center and a hotel. The majority of the CB zoned property in the area is vacant. The applicant is proposing to develop an impoundment yard and truck washing facility on the site. Impoundment yards are only permitted in the HI zone district and only after conditional discretionary review by the Board of Adjustment. In order to enable the development of this use the applicant is requesting a zone change from CB to HI. If the zone change is granted, the application would still require a conditional use approval by the Board of Adjustment. The HI district is intended for uses of very high intensity which should be isolated and buffered in order to protect the community and to ensure unimpeded operation of the use. The HI district is applicable to larger land areas that are remote from other differing or incompatible land uses to minimize the potential for incompatible and negative impacts of uses in the district and is most appropriate in areas with access to major regional transportation infrastructure, specifically areas designated Industrial in the Comprehensive Plan. The property and surrounding properties were annexed to the City in September of 1989 with HI zoning. In June of 1996 the same applicant requested and was granted a zone change from HI to CB in anticipation of developing a commercial use. However, the development of a commercial property never came to fruition and now the applicant would like to change the zoning back to HI. The application proposes to construct two one-way accesses off of Hutchins Drive, a landscape setback between the subject property and the CB zone district located to the east, a fence surrounding the entire property and an office building adjacent to Hutchins Drive. Due to the new use associated with this application, a Site Plan as well as a Transportation Worksheet shall be required at the time of development and would require design elements, such as the ones proposed, to mitigate potential conflict between HI uses and CB uses. Right-of-way improvements along Hutchins Drive would also be required, the details of such would be determined during the site plan review process. ShapeCheyenne, the City's future land use plan, identifies this area as Community Business. Appropriate uses for this category are general retail to serve neighborhoods, the community and the region. It also allows for offices. While HI is not an applicable zone district in the Community Business land use category, the property is located within an area that could support an HI zone district based on its size, location and the existing development pattern of the area. For instance, the parcel is large enough to accommodate necessary setbacks and buffers. The subject property is located near Interstate 80 and is mostly surrounded by industrial zone districts and uses which are largely compatible with the proposed use. Lastly, the proposed impound and truck washing facility is able to support both the intent and applicability statements of the HI zoning district as it represents a use which does not fit into the general business or mixed-use land use categories due to its nature and intensity of operation and because its use can produce impacts beyond the property lines.

The applicant is requesting a Zone District Map Amendment (Zone Change) from Community Business (CB) to Heavy Industrial (HI) for a vacant 2.15 acre site in order to develop an impound and truck washing facility upon the site.

Street Type

- Interstate
- Principal Arterial
- Minor Arterial
- Collector
- Local
- Ownership
- Subject Property

0 300 600 1,200 1,800 Feet

ZONE CHANGE ANALYSIS

The subject property is a vacant 2.15 acre parcel of land which measures approximately 332' by 282'. It is located at the eastern edge of the City, north of Interstate 80, at the Campstool Road and Interstate 80 interchange, which is the first highway exit into the City from the east.

The subject property resides adjacent to and north of Hutchins Drive and is currently located within a Community Business zone district (CB) but is surrounded by a Heavy Industrial zone district (HI) to the north, west and southeast and a Light Industrial zone district (LI) to the southwest. Other CB zone districts are sprinkled throughout the near vicinity.

Adjacent to the subject property to the north and west is a Caterpillar Dealership and adjacent to the subject property on the east is a vacant commercial property owned by Taco John's. Other businesses in the area, across Hutchins Drive, are Old Dominion Freight Company and John Deere equipment supply to the southwest and a Pilot Travel Center to the southeast. Further east and across from Campstool Road is a hotel and further north is the Lowe's national distribution center. The majority of the CB zoned property in the area is vacant. The area appears to be developing into land uses which support commercial machinery sales and commercial truck uses.

The applicant is proposing to develop an impoundment yard and truck washing facility on the site. Impoundment yards are only permitted in the HI zone district and only after conditional discretionary review by the Board of Adjustment. In order to enable the development of this use the applicant is requesting a zone change from CB to HI. If the zone change is granted, the application would still require a conditional use approval by the Board of Adjustment.

The HI district is intended for uses of very high intensity which should be isolated and buffered in order to protect the community and to ensure unimpeded operation of the use. These uses do not fit into other general business or mixed-use areas due to the nature or intensity of operations. The uses and building and site designs associated with uses in this district can produce impacts beyond the property lines, and the district should be remote from other differing and incompatible land uses.

The HI district is applicable to larger land areas that are remote from other differing or incompatible land uses to minimize the potential for incompatible and negative impacts of uses in the district. This district is most appropriate in areas with access to major regional transportation infrastructure, specifically areas designated Industrial in the Comprehensive Plan. The district should be sized according to market demands and employment forecasts and the inherent suitability of particular land areas to meet the intent of the district.

ShapeCheyenne, the City's future land use plan identifies this area as Community Business. Appropriate uses for this category are general retail to serve neighborhoods, the community and the region. This category also allows for offices. It may also include but is not limited to large tenant retail and regional malls. Intensive industrial activities are not appropriate.

The Community Business land use category encompasses retail centers that provide shopping services in the community and region. Community Business is generally shown on the land use plan at interstate interchanges or at the intersection of an arterial or state highway or at two arterials.

The property and surrounding properties were annexed to the City in September of 1989 with HI zoning. In June of 1996 the same applicant requested and was granted a zone change from HI to CB in anticipation of developing a commercial use. However, the development of a commercial property never came to fruition and now the applicant would like a zone change back to HI zoning.

The application proposes to construct two one-way accesses off of Hutchins Drive, a landscape setback between the subject property and the CB zone district located to the east, a fence surrounding the entire property and an office building adjacent to Hutchins Drive. Due to the new use associated with this application, a Site Plan as well as a Transportation Worksheet shall be required at the time of development. Right-of-way improvements along Hutchins Drive will also be required, the details of such shall be determined during the site plan review process.

Pursuant to Article 5, Sections 5.4.2d and 5.5.1d, there are no lot area, lot frontage or building height zoning requirements in the CB or HI zoning districts. However, the CB zone district has a 25' setback requirement from all properly lines adjacent to streets while the HI zone district requirement is 40'. Additionally, the maximum lot coverage requirement for the CB zone district is 85% while the HI zone district is 90%. Given the location, size and shape of the parcel, the zoning regulations for either zone district are capable of being met.

Pursuant to Article 6, Section 6.3.5a (Table 6-10), a level 2 screening and buffering requirement between the common property lines of a HI and CB zone district is required. The proposed application is expected to meet the intent, landscape width and plant materials design standards associated with the level 2 design standards outlined in Article 6, Section 6.3.5b (Table 6.11).

Access to Civic Open Space systems is an important consideration for any development application. However, minimum required Civic Open Space is not required in the HI zoning district thus none is being pursued with this application.

The subject property is contained within the City's Urban Service Boundary (USB). ShapeCheyenne, the City's land use plan, defines the USB as the major growth area for the community where urban scale development should be located. The subject property is not located within a floodplain or flood zone.

ZONE CHANGE REVIEW CRITERIA ANALYSIS:

In reviewing, providing comments, and making recommendations and decisions on a proposed zoning map amendment, the staff, Planning Commission and City Council shall use the following criteria:

1. The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

While HI is not an applicable zone district in the Community Business land use category, the property is located within an area that could support an HI zone district based on its size, location and the existing development pattern of the area. The parcel is large enough to accommodate necessary setbacks and buffers. The subject property has access to Interstate 80 and is largely surrounded by LI and HI zone districts. Additionally, the proposed use and existing land uses such as commercial machinery sales, a freight company and a large commercial fueling center are not incompatible uses. The majority of CB zoned property in the area is vacant and is located at the intersection of Campstool Road and Hutchins Drive. The subject property is located within the Urban Service Boundary which outlines where urban development in the community should occur. A change in the future land use designation for this parcel may be warranted and an update to ShapeCheyenne considered.

2. The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The proposed use is largely compatible with nearby property. Nearby property consist of machine equipment companies, a freight shipping company, a fuel service station which caters to semi-trucks and vacant CB zone parcels. A site plan for the proposed use would be required at the time of development and would require design elements which would serve to mitigate potential conflict between HI uses and CB uses.

3. The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

The parcel is able to meet the lot and building standards of either the CB or HI zone districts. However, the proposed use is not a permitted use in the CB zone district and is permitted in the HI zone district only after conditional discretionary review by the Board of Adjustment.

4. The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

The subject property and surrounding vicinity are already platted and established with streets, lots and blocks and are largely served by necessary infrastructure such as utilities, sewer and storm drainage. Furthermore, required Civic Open Space is not applicable for HI zone districts. As such a zone change to HI would be able to meet the Subdivision Standards outlined in Article 4, Section 4.1.3.

5. The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The proposed impound and truck washing facility is able to support both the intent and applicability statements of the HI zoning district as it represents a use which does not fit into the general business or mixed use land use categories due to its nature and intensity of operation and because its use can produce impacts beyond the property lines. Additionally, the site is capable of providing the required buffer between adjacent CB zoning type land uses and is substantially compatible with existing surrounding land uses.

6. The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

The HI zoning district provides for a range of heavy industrial uses as well as for outdoor and automobile service uses, some employment uses and for some public service uses. It is expected that the subject property would be able to meet all applicable standards for development for any permitted HI zone district use as well as provide for buffers to mitigate any potential incompatible uses.

7. The review and recommendations of other reviewing bodies.

Comments were offered by the Traffic Engineering department related to site access and traffic impacts which are items which will be addressed during the Site Plan review process.

8. Whether the application will harm the public health, safety, or general welfare.

Granting the zone change request from Community Business (CB) to a Heavy Industrial (HI) will not harm the public health, safety, or general welfare.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

Traffic Engineering

1. A Transportation Worksheet to determine TIA/TIS requirements was not provided as required (ref. Article 3, section 3.1.1.c., UDC).

2. Generally a minimum of one approach per parcel is permitted. If more than one approach is requested, a Transportation Impact Study may be required (ref. Article 4, Section 4.3.6., UDC).

Note: Items to be addressed during the site plan review process.

REVIEWING AGENCIES WITH NO COMMENT:

Attorney's Office
Development
Metropolitan Planning Office
Urban Planning
Drainage Engineering

REVIEWING AGENCIES NOT RESPONDING:

General Engineering

OTHER COMMENTS RECEIVED:

None

Encl: Staff Aerial Map
Zone Change Map
Applicant Criteria Response

cc: Owner/Applicant
Files: CAMP-Z, UDC-13-00163

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO HI HEAVY INDUSTRIAL FOR LOT 3, BLOCK 2, CAMPSTOOL ADDITION, SECOND FILING, CHEYENNE, WYOMING (LOCATED NORTH OF AND ADJACENT TO HUTCHINS DRIVE, WEST OF CAMPSTOOL ROAD)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on June 3, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 3, Block 2, Campstool Addition, Second Filing, Cheyenne, Wyoming is hereby changed to HI Heavy Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

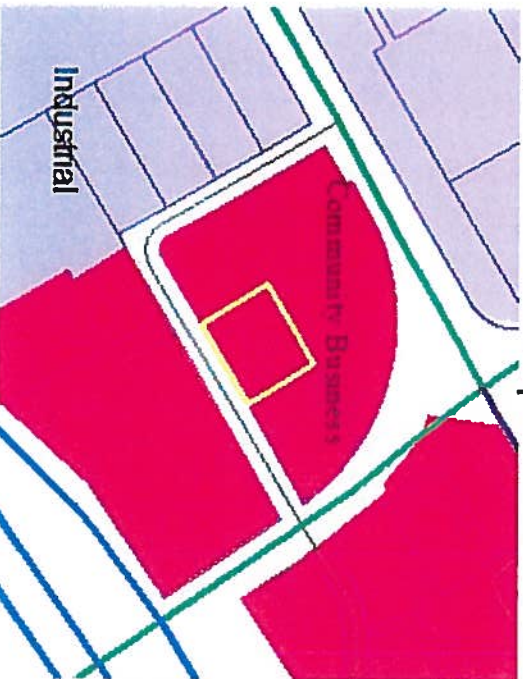
CAROL INTLEKOFER, CITY CLERK

publish date: _____

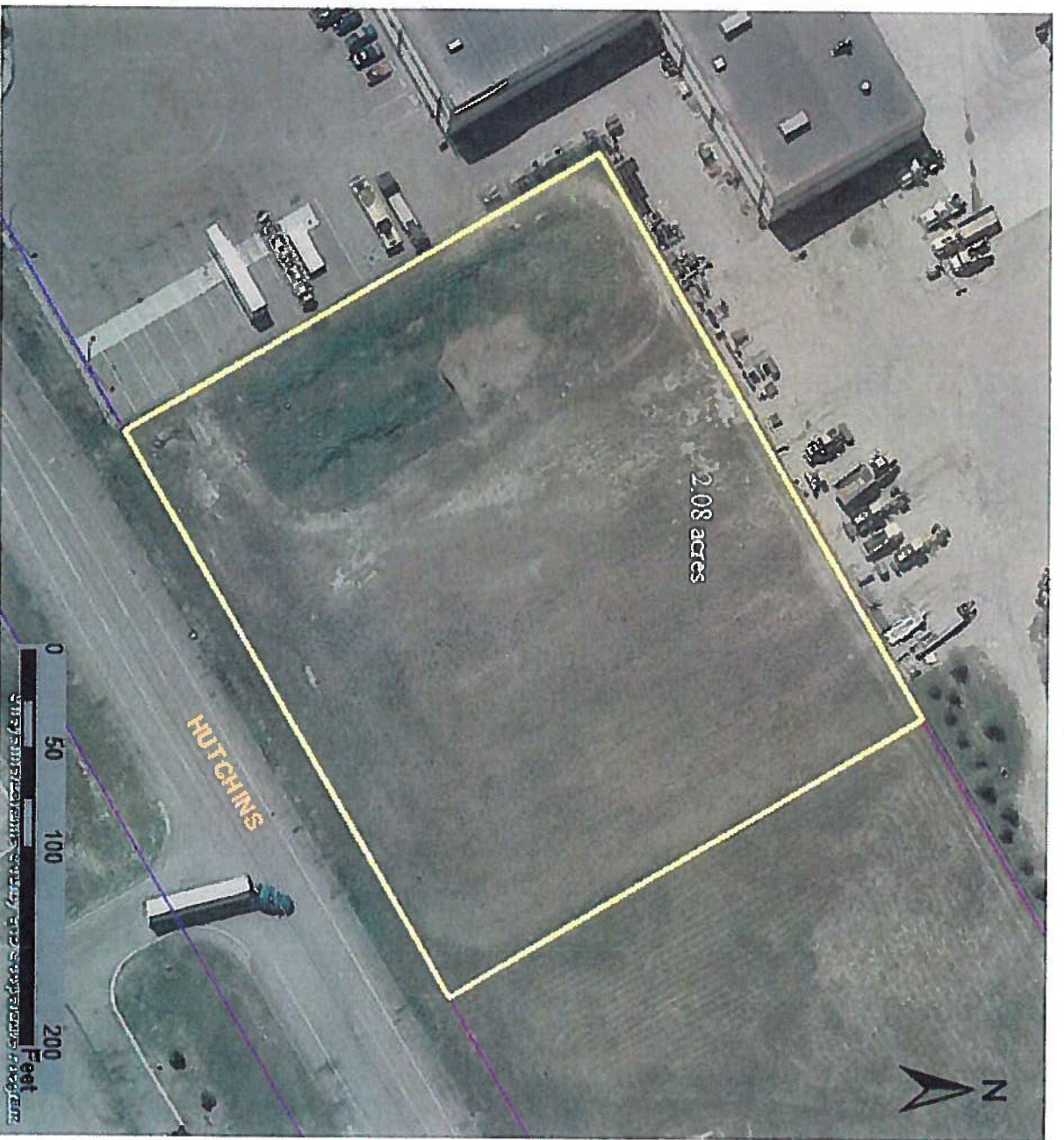
Zoning District



Future Land Use Map



Hutchins Rezone



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCOGS) Program and is for display purposes only. The CLCOGS includes the ownership and governmental authority having access to or use of this data.

2010 Aerial

UDC-13-00163

Request to change from CB zone to HI zone



FISHBOR LLC
307-421-9430 or
109 E. 17th Street
Cheyenne, WY 82001

PUCKLE LLC
307-634-6684
731 Custer St.
Cheyenne, WY 82009

April 26, 2013

Building and Development Office
City of Cheyenne
2101 O'Neil Avenue, Suite 202
Cheyenne, WY 82001

To Whom It May Concern:

We are requesting a zone change for the property located at Lot 3, Block 2, Campstool Addition, second filing. This property is currently zoned commercial business (CB). We would like to change the zone to Heavy Industrial (HI).

In 2006 we were hoping the site would be used for a restaurant which was the cause for the change in zoning. However, we have now received interest in using this site for a towing company yard and office, storage of impounded vehicles, and a truck washing facility.

This change in zoning meets the 8 criteria described in the UDC procedures for a Zone Change.

1. This use would be compatible with the Comprehensive Plan for this area. The property was originally zoned HI and is surrounded land.
2. Adjacent and nearby properties are zoned HI. Immediately adjacent to the north and west is WYOMING MACHINERY whose lot is zoned as HI. To the south is the Pilot Truck Stop which is also zoned as HI.
3. This property when rezoned would be suitable for development according to the existing zoning district.
4. The property would be developed according to the Subdivision Standards in Article 4 with this zoning change.
5. The zoning change would support the Intent and Applicability statements for the zoning district.
6. Potential future development will meet all applicable standards for development.
7. The zoning change will not harm public health, safety, or general welfare.

Attached are the following requested documents.

1. Development Review Application
2. Applicable Fees
3. Zoning Maps (1 digital, 5 hard copies)

Please feel free to contact Phil Pucel (307-634-6684) or Steve Borin (307-421-9430) if you have any questions or need any other documentation. We will be happy to provide you with any additional information you may need.

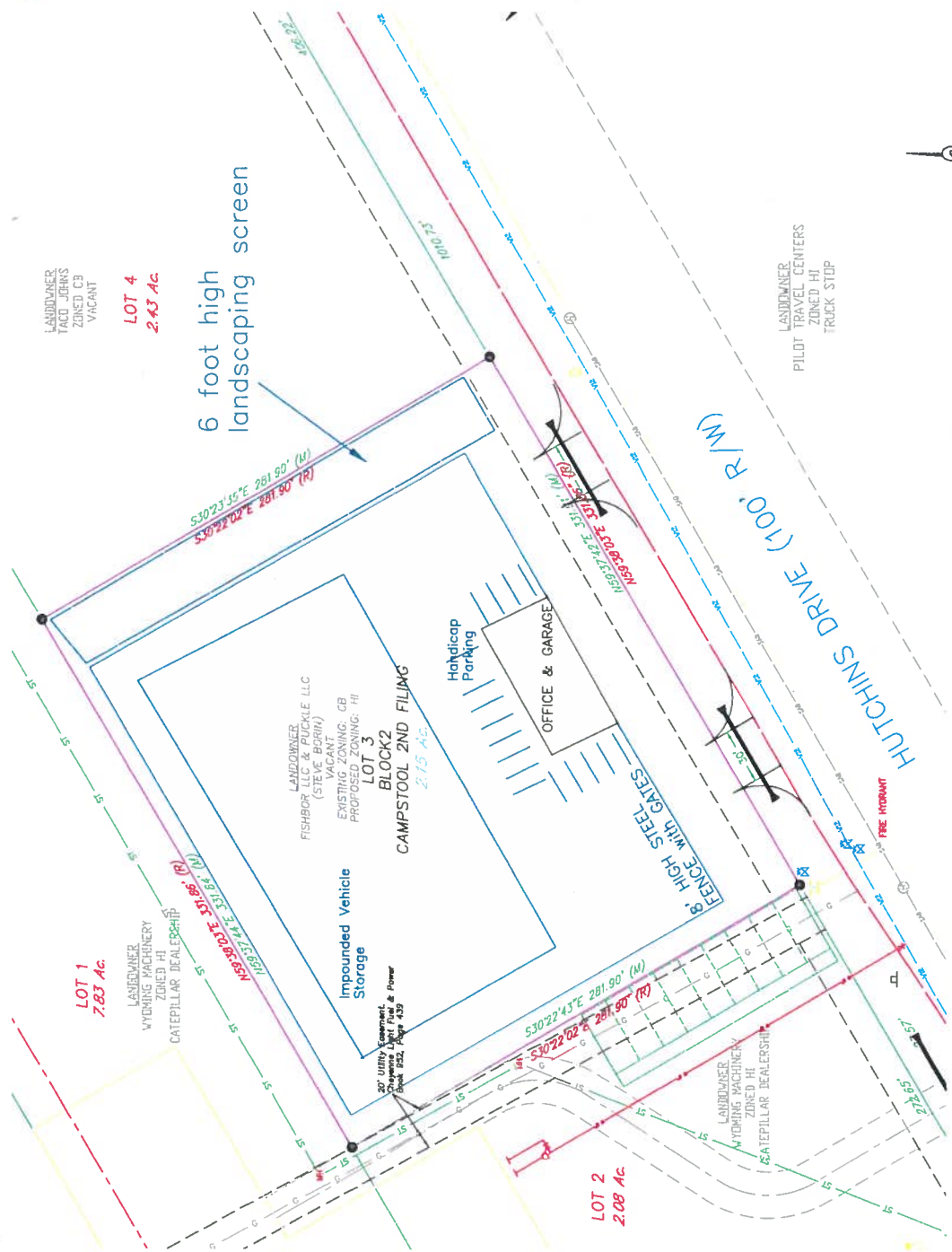
Sincerely,



BUILDING & DEVELOPMENT OFFICE

APR 26 2013

RECEIVED



COMPUTATION TABLE

Total Site Area: 2.15 acres
Existing Zoning: CB
Proposed Zoning: HI
Building Area: 3200 sq. ft.
Parking at office: 13 spaces
plus one ADA parking space
Landscaped Area: 7,000 sq. ft.
Estimated trips per day: 20

DEVELOPER:
BORIN LAND CO.
109 E. 17th STREET, STE. 3
CHEYENNE, WY. 82001
ENGINEER: J. J. JENSEN
A/E P.C.
2035 WESTLAND ROAD
CHEYENNE, WYOMING 82007

ZONE CHANGE MAP
FOR

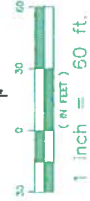
LOT 3, BLOCK 2
CAMPSTOOL ADDITION SECOND FILING
A SUBDIVISION OF A PORTION SECTION 31,
TOWNSHIP 14 NORTH, RANGE 65 WEST OF THE 6TH
PRINCIPAL MERIDIAN, CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING

PREPARED MARCH 2006 / REVISED APRIL 2013

FILING RECORD

Reception _____
The State of Wyoming } SS
County of Laramie }
This instrument was filed for record
at _____ day of _____, M., on the
A.D. 20 _____ and duly recorded in
P/C _____ del.
County Clerk & Ex-Officio Registrar of Deeds
By _____ Deputy

BEARING
N 42°-00'00"00" BRG-NORTH
S 42°-00'00"00" BRG-SOUTH
A2=07700000"
A2=07700000"
BRG-WEST
BRG-EAST



6 foot high landscaping screen

LANDOWNER
PILOT TRAVEL CENTERS
ZONED HI
TRUCK STOP

HUTCHINS DRIVE (100' R/W)

8' HIGH STEEL GATES

Office & Garage

Handicap Parking

Impounded Vehicle Storage

20' Utility Easement
Cheyenne Light Fuel & Power
Book 852, Page 439

LOT 1
7.83 Ac

LOT 2
2.08 Ac

LOT 4
2.43 Ac

LANDOWNER
FISHBOR LLC & PUCKLE LLC
(STEVE BORRIL)
VACANT
EXISTING ZONING: CB
PROPOSED ZONING: HI

LOT 3
BLOCK 2
CAMPSTOOL 2ND FILING
2.15 Ac

LANDOWNER
WYOMING MACHINERY
ZONED HI
CATEPILLAR DEALERSHIP

LANDOWNER
TACO JERMS
ZONED CB
VACANT